

Court No. - 32

Case :- WRIT - C No. - 507 of 2020

Petitioner :- Navneet Kumar Singh
Respondent :- State Of U.P. And 5 Others
Counsel for Petitioner :- Shri Krishna
Mishra,Sharad Chand Rai
Counsel for Respondent :- C.S.C.,Rajesh
Yadav

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following reliefs:

" Issue a writ order or direction in the nature of certiorari quashing the impugned order dated 07.11.2019, passed by the Respondent no. 4- Executive Engineer, Electricity Distribution, Division Debai, District Bulandshahr by means of which the petitioner has been directed to pay Rs. 37788.00/- (Annexure No. 9 to the writ petition) as well as quash the Bill of December, 2019, issued by the respondent Authorities so far regarding the demand of amount Rs. 36939/- for meter sealing (Annexure No. 11 to this writ petition)."

Heard learned counsel for the petitioner, Sri Rajesh Yadav, learned counsel for the Electricity Department and perused the record.

Learned counsel for the petitioner submits that the petitioner has already deposited a cheque for

Rs.3,7788/-, whereafter, the electricity connection of the petitioner was restored but thereafter without affording opportunity of hearing to the petitioner, the respondents have again issued a bill illegally demanding a sum of Rs. 36,939/-. The said bill has been disputed by the petitioner.

From perusal of the record, it transpires that the petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within two weeks from today by filing a fresh application/objection, his application/objection may be considered and decided by the Authority concerned in accordance with law within four weeks from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of six weeks or till the matter is decided by the authority concerned, whichever is earlier, no coercive action shall be taken against the petitioner.

It is made clear that in case the petitioner does

not approach the authority concerned within the stipulated period, as indicated herein above, the benefit given to the petitioner under this order shall cease to operate.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 9.1.2020

MLK